

FROM Robert Samuel White
TO OREGONDAS Support; Robert Samuel White
DATE July 6, 2026, 4:05 PM PT
SUBJECT **Re: [Records Center] Public Records Request :: R000879-070126**
DOCUMENT 01KWWTVPSRNK62FPSB42WRNAX8

Subject: RE: Public Records Request R000879-070126 — Request Not Fully Addressed; Please Reopen

Ms. Duke,

Thank you for the acknowledgment. The closure is premature, because the response addresses only one category of my request and mischaracterizes the remainder.

My request was not limited to OPRD personnel records. It expressly sought, among other things:

"Any communication between your agency and the Oregon Parks and Recreation Department, the Office of the Governor, or any other state entity that references me"; and

"Any record in which I am named or identifiably described in connection with personnel, human resources, legal, risk, or accountability matters."

DAS is necessarily the custodian of DAS's own communications and of DAS-originated legal, risk, and accountability records. OPRD cannot produce records created, sent, received, or maintained by DAS. For these categories, DAS is the only possible custodian, and referral to OPRD is not a lawful response.

I therefore ask that you reopen R000879-070126 and provide, for the period January 1, 2024 to present, one of the following dispositions as to DAS's own records, per ORS 192.324 and 192.329:

Production of responsive records;

Production with any claimed exemptions identified by record and statutory basis; or

A statement that DAS holds no responsive records.

For the avoidance of doubt, the request includes any DAS record referencing me by name or identifier in connection with a tort-claim or §1983 notice concerning an OPRD official, and any DAS

communication with the Office of the Governor referencing me.

If you maintain that DAS holds no responsive records in any of these categories, please state that expressly rather than closing on custodian grounds, as the two are distinct determinations under Oregon law.

Please confirm the request is reopened. I'm happy to clarify scope if helpful.

Regards,
Robert Samuel White